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Case Number: 26NNCV04547 Hearing Date: September 18, 2026 Dept: E

Case No: 26NNCV04547

Hearing

Date: 9/18/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: GARY MANUKYAN v. ESTATE OF EDWARD RIPPLE JR., DECEASED

TENTATIVE RULING ON DEMURRER AND MOTION TO STRIKE

BACKGROUND

Plaintiff, Gary Manukyan,
filed the instant action on 6/8/2026 against Defendant, Estate of Edward Ripple
Jr., Deceased.

Plaintiff's Complaint entitles
the first, second, and third causes of action as Motor Vehicle, General
Negligence, and Intentional Tort, respectively.

Plaintiff alleges that
Defendant rear-ended his vehicle by failing to maintain a safe traveling
distance, and Plaintiff alleges that Defendant made the deliberate choice to
flee the scene without stopping, rendering aid, or providing identification and
insurance information. (See Compl., p. 5-6.)

RELIEF REQUESTED

Defendant, Estate of Edward

Ripple Jr., Deceased, demurs to the third cause of action for Intentional Tort/Intentional Infliction of Emotional Distress (IIED) on grounds of failure to state facts sufficient to constitute a cause of action [CCP § 430.10(e)] and uncertainty/ambiguity [CCP § 430.10(f)].

PROCEDURAL

Moving Party: Defendant,
Estate of Edward Ripple Jr., Deceased,

Responding Party: Plaintiff,
Gary Manukyan

Moving Papers: Notice/Demurrer;
Proposed Order

Opposition Papers: Opposition

Reply Papers: Reply [Reply
submitted on 9/17/26 at 3:21 p.m., i.e., the day before the hearing. The Court
considers the untimely reply.]

PROCEDURAL

Meet and Confer

A party filing a demurrer "shall meet and confer
in person or by telephone with the party who filed the pleading that is subject
to demurrer for the purpose of determining whether an agreement can be reached
that would resolve the objections to be raised in the demurrer." (Code Civ.
Proc., § 430.41, subd. (a).) "The
parties shall meet and confer at least five days before the date the responsive
pleading is due. If the parties are not able to meet and confer at least five
days prior to the date the responsive pleading is due, the demurring party
shall be granted an automatic 30-day extension of time within which to file a
responsive pleading, by filing and serving, on or before the date on which a

demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer." (CCP, § 430.41, subd. (a)(2).)

Failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (CCP § 430.41(a)(4).)

Here, Defendant's counsel alleges that a meet and confer occurred. (Rabbani Decl., ¶¶ 5-8.)

LEGAL STANDARD

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) "All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient

particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.)

Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khouri v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

TENTATIVE RULING ON DEMURRER

Third Cause of Action – Intentional Tort/Intentional Infliction of Emotional Distress (IIED)

Plaintiff's

third cause of action is entitled as a claim for Intentional Tort, but both parties' papers appear to assume that this cause of action is for IIED.

Defendant

demurs to the IIED claim on the basis of failure to state facts sufficient to constitute a cause of action and vagueness.

Defendant

argues that Plaintiff's claim for IIED is conclusory, devoid of specific facts, and argues that whether conduct rises to the level of "extreme and outrageous" is a question of law that courts routinely dispose of at the pleading stage.

Further,

Defendant argues that Plaintiff does not allege conduct that is extreme or outrageous that is directed toward Plaintiff.

Additionally,

Defendant argues that Plaintiff does not allege any facts showing Plaintiff suffered severe emotional distress.

Defendant

also argues that Plaintiff does not explain why the conduct is extreme or outrageous.

With

respect to the third cause of action, Plaintiff's Complaint alleges in relevant part:

Defendant's conduct was extreme and outrageous. After negligently operating his vehicle at an unsafe speed and failing to maintain a safe following distance, causing him to violently rear-end Mr. Manukyan, Defendant made the deliberate choice to flee the scene without stopping, rendering aid, or providing his identification and insurance information, in violation of California Vehicle Code §§ 20001, 20002, and 20003. Defendant knowingly abandoned an injured person at the scene of a collision he caused.

Defendant acted with reckless disregard of the high probability that Mr. Manukyan would suffer severe emotional distress. Mr. Manukyan was present at the scene, was aware of the collision and its cause, and was left without assistance or acknowledgment as Defendant fled. The deliberate act of abandonment, following a violent rear-end impact, compounded Mr. Manukyan's physical trauma with the acute psychological harm of being left injured and alone by the person responsible.

As a direct and proximate result of Defendant's extreme, outrageous, and willful conduct, Mr. Manukyan suffered severe emotional distress. Defendant's conduct was a substantial factor in causing that harm.

(Compl.,
p. 6.)

As

stated in *Yau v. Santa Margarita Ford, Inc.*:

“ ‘ [T]o state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” ’ [Citation.] ‘ “Conduct, to be ‘ “outrageous” ’ must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” ’ [Citation.] In order to avoid a demurrer, the *161 plaintiff must allege with ‘great[] specificity’ the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.]” (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832, 166 Cal.Rptr.3d 242 (*Vasquez*).)

(*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160-61.)

Here, Defendant's argument that Plaintiff's allegations are vague and devoid of factual allegations is unavailing.

To the extent that Defendant argues that Plaintiff does not allege extreme and outrageous conduct, the Court does not find that argument availing.

Although Defendant cites to *Fowler v. Varian Associates, Inc.* (1987) 196 Cal.App.3d 34 to argue that whether conduct rises to the level of “extreme and outrageous” is a question of law that courts routinely dispose of at the pleading stage, the Court notes *Fowler* was determined at a different procedural posture [at summary judgment]. Particularly, the Court of Appeal determined “[t]here is no evidence in the record suggesting” plaintiff or its personnel behaved outrageously. (See *Fowler v. Varian Associates, Inc.* (1987) 196 Cal.App.3d 34, 45.)

Whether alleged behavior is sufficiently extreme as to constitute "outrageous" behavior is properly determined by the fact finder after trial or possibly after discovery upon a motion for summary judgment. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1226.)

Here, unlike *Fowler*, no evidence is before the court, as this case is at the pleading stage.

Additionally, although Defendant argues that Plaintiff does not "explain why" the conduct is extreme or outrageous, Defendant cites no authority for the proposition that the Plaintiff must "explain why" the conduct is extreme and outrageous.

To the extent that Defendant argues that Plaintiff does not allege facts that Plaintiff suffered "severe" emotional distress, the Court finds Defendant's argument availing.

Here, Plaintiff simply alleges that "Mr. Manukyan suffered severe emotional distress." (Compl., p.6.)

"Only emotional distress of "such substantial quantity or enduring quality" that an individual in civilized society should not be expected to endure it constitutes severe emotional distress." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 quoting *Kiseskey v. Carpenters' Trust for So. California* (1983) 144 Cal.App.3d 222, 231.)

In *Angie M.*, the Court of Appeal held that Angie did not plead facts showing she suffered "severe" emotional distress because she did not plead facts demonstrating the nature, extent, or duration of her alleged emotional distress. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Here, similar to the circumstances in *Angie M.*, Plaintiff does not plead any facts demonstrating the nature, extent, or duration of Plaintiff's alleged emotional distress; Plaintiff simply alleges that "Mr. Manukyan suffered severe emotional distress." (Compl., p.6.)

Therefore, Plaintiff does not sufficiently plead the third element of a claim for IIED, i.e., Plaintiff does not plead that he suffered severe or extreme emotional distress.

“It is clear that a mere momentary or transitory emotional distress is insufficient to constitute severe emotional distress.” (Kiseskey v. Carpenters’ Trust for So. California (1983) 144 Cal.App.3d 222, 231.)

Defendants’ demurrer to the third cause of action (Intentional Tort/IIED), made on the basis that Plaintiff did not state facts sufficient to constitute a cause of action, is SUSTAINED. Plaintiff did not allege the third element of a claim for IIED.

In opposition, Plaintiff argues that leave to amend should be granted because leave to amend is liberally allowed, and because Plaintiff argues it can address any deficiencies through amendment.

Here, the Court GRANTS LEAVE TO AMEND.

TENTATIVE RULING –MOTION TO STRIKE

Defendant moves to strike: (1) Plaintiff’s third cause of action for Intentional Tort/IIED; (2) The Prayer for Relief seeking punitive damages [located on p. 3, ¶ 14(a)(2) of the Compl.]; and (3) Any other references to punitive or exemplary damages.

Defendant makes arguments on how Plaintiff did not state facts sufficient to constitute a cause of action for IIED; therefore, the IIED claim must be stricken.

The Court notes that Defendant’s attempt to use a motion to strike to argue that Plaintiff did not sufficiently state a claim for IIED is improper.

A motion to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

Defendant's motion to strike the third cause of action is GRANTED because the Court sustained the demurrer to the third cause of action; however, the Court GRANTS LEAVE TO AMEND because it granted leave to amend for Plaintiff to sufficiently plead the third cause of action.

Defendant argues that the prayer for relief seeking punitive damages should be stricken because punitive damages are not available here under CCP § 377.42, and on the basis that Plaintiff did make sufficient allegations under Civil Code § 3294.

In opposition, Plaintiff argues that the motion to strike is moot with respect to striking punitive damages because Plaintiff agreed to amend the pleading and remove the prayer seeking punitive damages.

Here, the Court will hear argument. Should the Court GRANT Defendant's motion to strike the prayer for relief seeking punitive damages, on the basis that Plaintiff's opposition concedes that Plaintiff agreed to remove the prayer for relief seeking punitive damages? Or should the Court DENY the motion to strike the prayer for relief seeking punitive damages, on the basis it is moot because Plaintiff is agreeing that it will remove the punitive damages request?